

Stereo. HC JD A 38.
Judgment Sheet
**IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR.**
JUDICIAL DEPARTMENT

Criminal Appeal No. 241 of 2021
(Mst. Rashida Bibi alias Khanam Vs. The State and another)

Petition for Special Leave to Appeal No.29 of 2021.
(Faqeer Muhammad Vs. The State and three others.)

Criminal Revision No. 126 of 2021
(Faqeer Muhammad Vs. State and another.)

Date of hearing:	26.11.2021.
Appellant by:	Syed Zeeshan Haider, Advocate.
State by:	Rao Muhammad Riaz Khan Deputy District Public Prosecutor.
Complainant by:	Mr. Muhammad Khubaib Mahand, Advocate.

SADIQ MAHMUD KHURRAM, J. –Mst. Rashida Bibi alias Khanam wife of Muhammad Asif (convict) was tried along with Muhammad Ramzan son of Shah Din, Muhammad Rashid son of Muhammad Ramzan and Muhammad Nasir son of Muhammad Ramzan (the co-accused of the convict, all since acquitted) by the learned Additional Sessions Judge/MCTC Ahmadpur East in the case instituted upon the private complaint titled “*Faqeer Muhammad Vs. Mst. Rashida Bibi alias Khanam and three others*” (relating to FIR No. 165 of 2020 dated 16.07.2020 registered at Police Station Channi Goth, District Bahawalpur) in respect of offences under sections 302, 324, 34 and 109 PPC

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for committing the *Qatl-i-Amd* of Ilam Din son of Muhammad Shafi (deceased). The learned trial court vide judgment dated 25.05.2021, convicted Mst. Rashida Bibi alias Khanam wife of Muhammad Asif (convict) and sentenced her as infra:

Mst. Rashida Bibi alias Khanam wife of Muhammad Asif:

Imprisonment for life under section 302(b) PPC as *Tazir* for committing *Qatl-i-Amd* of Ilam Din son of Muhammad Shafi (deceased) and directed to pay Rs.200,000/- as compensation under section 544-A, Cr.P.C. to the legal heirs of the deceased namely Ilam Din son of Muhammad Shafi (deceased) and in case of default thereof, the convict was directed to further undergo six months of simple imprisonment. The convict was ordered to be hanged by his neck till dead.

The convict namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif was extended the benefit available under Section 382-B of Code of Criminal Procedure, 1898 by the learned trial court .

Muhammad Ramzan son of Shah Din, Muhammad Rashid son of Muhammad Ramzan and Muhammad Nasir son of Muhammad Ramzan , the co-accused of the convict, were acquitted by the learned trial court.

2. Feeling aggrieved, Mst. Rashida Bibi alias Khanam wife of Muhammad Asif (convict) lodged Criminal Appeal No.241 of 2021 assailing her conviction and sentence. The complainant of the case namely Faqeer Muhammad filed Petition for Special Leave to Appeal No.29 of 2021 seeking permission to file an appeal against the acquittal of Muhammad Ramzan son of Shah Din, Muhammad Rashid son of Muhammad Ramzan and Muhammad Nasir son of Muhammad Ramzan (the co-accused of the convict, all since acquitted). The complainant of the case namely Faqeer Muhammad also filed a Criminal Revision No. 126 of 2017 seeking the enhancement of sentence awarded to Mst. Rashida Bibi alias Khanam wife of Muhammad Asif (convict).

By way of this judgment the Criminal Appeal No. 241 of 2021, the Criminal Revision No. 126 of 2021 and the Petition for Special Leave to Appeal No.29 of 2021 are being decided.

3. Precisely, the necessary facts of the prosecution case, as stated by Faqeer Muhammad (PW-3), the complainant of the case, are as under:-

“Stated that on 15.07.2020, at 12.00 p.m. noon. my father Ilim Din went to the house of my uncle Muhammad Asghar for providing an iron wire. As soon as soon, he entered inside the house. Mst. Rashida Bibi/person complaint against present before Court, came there and stated to him that you use to quarrel with us, without any cause. "Today. I will break your head" My father sit on a cot. Mst, Rashida Bibi, pick up a wooden DANDA lying nearby and hit upon head of my father. She repeated it again upon his head. She made third DANDA blow which hit upon left side of ribs of my father. On hue and cry I. Muhammad Asghar, Muhammad Ramzan ran from our house towards place of occurrence. Mst. Rashida Bibi inflicted above mentioned three DANDA blows in our view We witnessed the occurrence. We attended our father and took him to THQ Ahmadpur East. After one hour. my father was referred to BVH, Bahawalpur. We shifted him through ambulance to BVH, Bahawalpur.

Police reached at BVH. Bahawalpur and recorded my statement Exh.Pl. The occurrence was committed by Mst. Rashida Bibi, on the abetment/instigation of Muhammad Ramzan s/o Shah Din, Muhamad Rashid s/o Muhammad Ramzan and Muhammad Nasir s/o Muhammad Ramzan. Local police got registered FIR No.365/20 P.S. Chani goath concerning to occurrence, but during investigation. declared respondent NO.2 to 4 as not involved in the occurrence. Aggrieved from opinion of police. I filed instant private complaint Exh.PJ. It bears my thumb impression as Exh.PI/1.

After about one month of the occurrence, the police took me and Muhammad Ashraf alongwith Mst. Rashida Bibi to her house. Mst. Rashida Bibi got recovered a DANDA P-1, after opening PETI, lying in her residential room. Mst, Rashida Bibi handed over in DANDA to 1.0. 1.0. took into possession through recovery memo Exh PK was attested by me and Muhammad Ashraf Police recorded my statement u/s 161 Cr.P.C. in this regard. The accused person be punished in accordance with law.”

4. The accused were summoned to face trial in the case instituted upon the private complaint titled “*Faqeer Muhammad Vs. Mst. Rashida Bibi alias Khanam and three others*” (relating to FIR No. 165 of 2020 dated 16.07.2020 registered at Police Station Channi Goth, District Bahawalpur) in respect of

offences under sections 302, 324, 34 and 109 PPC for committing the *Qatl-i-Amd* of Ilam Din son of Muhammad Shafi (deceased). The learned trial court framed the charge against the accused on 04.01.2021, to which the accused pleaded not guilty and claimed trial.

5. The complainant of the case in order to prove its case got recorded statements of as many as **six** witnesses. The ocular account of the case was furnished by Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4). Muhammad Kashif (PW-5) and Muhammad Ramzan son of Muhammad Aslam (PW-6) stated that in their presence, Muhammad Ramzan son of Shah Din, Muhammad Rashid son of Muhammad Ramzan and Muhammad Nasir son of Muhammad Ramzan (all since acquitted), the co-accused of the appellant, told the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif to break the head of Ilam Din (deceased) if he quarreled with her.

6. The learned trial court also examined as many as **eight** witnesses as court witnesses. Muhammad Nawaz Sharif ASI (CW-1) stated that on 16.07.2020, he recorded the formal F.I.R (Exh.CW-1/1). Muhammad Siddique 1021/HC (CW-2) stated that on 16.07.2020, Abdur Rauf ASI (CW-5) handed over to him a sealed parcel said to contain blood stained earth which on 17.08.2020, he handed over the said parcel to Muhammad Akmal SI (CW-6) for its onward transmission to the office of Punjab Forensic Science Agency, Lahore and Abdur Rauf ASI (CW-5) further stated that on 13.08.2020, Muhammad Akmal SI (CW-6), the Investigating Officer of the case, handed over to him a sealed parcel which on 07.09.2020, he handed over the said sealed parcel back to Muhammad Akmal SI, (CW-6) for its onward transmission to the office of Punjab Forensic Science Agency, Lahore. Bashir Ahmad 1873/C

(CW-3) stated on 16.07.2020, he took the oral statement (Exh.PI) of Faqeer Muhammad (PW-3) to the police station for the registration of the formal F.I.R and on 06.08.2020 he escorted the dead body of the deceased to the hospital for its post-mortem examination and also received the last worn clothes of the deceased. Salma Mumtaz Khan 178/LC (CW-4) stated on 11.08.2020 the appellant was arrested and on 13.08.2020 the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif led to the recovery of Danda (P-1). Abdur Rauf ASI (CW-5) investigated the case from 16.07.2020 till 06.08.2020, and detailed the facts of the investigation as conducted by him in his statement before the learned trial court. Saeed Akhtar draftsman (CW-7) prepared the scaled site plans of the place of occurrence (Exh.CW7/1 and Exh.CW7/2). Muhammad Akmal SI (CW-6) investigated the case from 06.08.2020 till 10.09.2020, arrested the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif on 11.08.2020 and detailed the facts of the investigation as conducted by him in his statement before the learned trial court

7. The complainant of the case also got Dr. Mubashir Raza (PW-1) examined who on 17.07.2020 was posted as Medical Officer at RHC Channi Goth and on the same day medically examined Ilam Din son of Muhammad Shafi (then injured later deceased). Dr. Mubashir Raza (PW-1), on examining Ilam Din son of Muhammad Shafi (then injured later deceased) observed as under:

“Injury No. 1 (i) A stitched wound at the area of frontoparietal and extended to left mastoid region. Mark measuring 28 cm x 0.5 cm width and depth cannot be given because wound was already stitched.

(ii). At the time of examination of victim there was no ENI bleeding seen.

Injury No. (2) Slide (sic) swelling of the left sub costal of chest mark measuring 5 cm x 2 cm. X ray chest A-P and lateral view. This injury was declared as NAD

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Whereas, opinion regarding injury NO.I was KUO.”

On 06.08.2020, Dr. Mubashir Raza (PW-1) conducted the post mortem examination of the dead body of the deceased namely Ilam Din son of Muhammad Shafi after his death and noted the same injuries as mentioned by him at the time of the medical examination of Ilam Din son of Muhammad Shafi (deceased) , and further opined as under:-

“Final Opinion

After going through external and internal examination of the body. it is concluded that injury No. I was ante mortem in nature and caused by blunt object and also origin (sic) wound extended may be during operation in neuro surgery ward BVH, Bahawalpur. I am of the opinion that injury NO.I was cause of death due to the head injury which is already described. It leads to fracture of skull bone, injury to brain matter, head to neurogenic, hypovolemic shock, cardiopulmonary arrest and resulting death. This injury is sufficient to cause death in ordinary course of nature.”

The complainant of the case also got Dr. Ameenullah Khan (PW-2) examined who stated that on 15.07.2020 he was posted as Medical Officer at the Neuro Surgery Ward, BV Hospital Bahawalpur and on the same day had examined Ilam Din son of Muhammad Shafi (then injured later deceased) and issued the report (Exh.PH).

8. On 23.01.2021, the learned counsel for the complainant of the case, gave up the witness namely Muhammad Ashraf as being unnecessary. On 27.01.2021, the learned counsel for the complainant of the case, gave up the witness namely Dr. Sajjad Hussain as being unnecessary and closed the case of the complainant. On 18.03.2021, the complainant tendered in evidence

the report of Punjab Forensic Science Agency, Lahore (Exh.PN) regarding the analysis of the blood stained earth and the *Danda* (P-1).

9. After the closure of prosecution evidence, the learned trial court examined the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif under section 342 Cr.P.C. and in answer to question why this case against you and why the PWs have deposed against you, she replied that she had been involved in the case falsely and was innocent. The appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif opted not to get herself examined under section 340(2) Cr.P.C and did not adduce any evidence in her defence.

10. On the conclusion of the trial, the learned Additional Sessions Judge, Ahmed Pur East convicted and sentenced the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif as referred to above.

11. The contention of the learned counsel for the appellant precisely is that the whole case is fabricated and false and the prosecution remained unable to prove the facts in issue and did not produce any unimpeachable, admissible, and relevant evidence. Learned counsel for the appellant further contended that the story of the prosecution mentioned in the statements of the witnesses, on the face of it, was highly improbable. Learned counsel for the appellant further contended that the statements of the prosecution witnesses were not worthy of any reliance. The learned counsel for the appellant also argued that the appellant had been involved in the occurrence due to enmity. The learned counsel for the appellant finally submitted that the prosecution had totally failed to prove the case against the accused beyond the shadow of a doubt.

12. On the other hand, the learned Deputy District Public Prosecutor along with the learned counsel appearing on behalf of the complainant contended that the prosecution has proved its case beyond shadow of doubt by producing independent witnesses. They further argued that the deceased died as a result of injuries suffered at the hands of the appellant. They further contended that the medical evidence also corroborated the statements of Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4). They further argued that the recovery of the *Danda (P-1)* from the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif also corroborated the ocular account. They further contended that there was no occasion for the prosecution witnesses, who were related to the deceased, to substitute the real offender with the innocent in this case. Lastly, the learned Deputy District Public Prosecutor and the learned counsel appearing on behalf of the complainant prayed for the rejection of appeal as lodged by the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif.

13. I have heard the learned counsel for the appellant, the learned Deputy District Public Prosecutor along with the learned counsel for the complainant and with their assistance perused the record and evidence recorded during the trial.

14. The whole prosecution case revolves around the statements of Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4). These witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) were related to each other. Their relationship with the deceased is also on record. The deceased namely Ilam Din son of Muhammad Shafi was father of both the prosecution witnesses namely Faqeer Muhammad

(PW-3) and Muhammad Ramzan son of Ilam Din (PW-4). According to the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) they were residents of the neighborhood where the occurrence took place. According to the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4), the occurrence had taken place inside the house of one Muhammad Asghar. Both the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) though claimed to be the next wall neighbors of the said Muhammad Asghar however, could not provide any proof of their residence being next to the place of occurrence. Faqeer Muhammad (PW-3) during cross-examination claimed as under:-

“My house is adjacent to the house of Mst. Rashdida. The house of Muhammad Asghar s/o Muhamad Shafi, is inside the house of Mst. Rashida. My house is on western side to the house of Mst. Rashida.

.....

Ilim Din went to deliver wire to the house of his brother and the with Ilim Din. occurrence took place in the house of brother of Ilim Din.

Similarly Muhammad Ramzan son of Ilam Din (PW-4) also claimed during cross-examination as under:-

“My father Ilam Din deceased was residing with me.

.....

The courtyard of house of MSt. Rashida and uncle Asghar is same, there is only a short wall existing between it. I'm HAMDIWAR to the house of Mst. Rashida accused. This DIWAR is full DIWAR. as a DIWAR of a normal house.”

Contrary to the claim of the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4), that they were the

next door neighbors of the place of occurrence and therefore reached there immediately after hearing the hue and cry of their father, the deceased, it has been noticed by this Court that in the scaled site plans of the place of occurrence (Exh.CW7/1 and Exh.CW7/2) as prepared by Saeed Akhtar draftsman (CW-7) and in the rough site plan of the place of occurrence (Exh.CW5/1) as prepared by Abdur Rauf (CW-5), the Investigating Officer of the case, the residences of both the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) have not been marked in the same. Additionally, Abdur Rauf ASI (CW-5), the Investigating Officer of the case, during cross-examination stated that the house of the deceased was not near the place of occurrence though it was claimed by Muhammad Ramzan son of Ilam Din (PW-4) that his father, the deceased, was residing with him and he was the next wall neighbor of the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif. Abdur Rauf ASI (CW-5), the Investigating Officer of the case, during cross-examination stated as under:-

“When I went to prepare rough site plan of place of occurrence. I noticed that adjacent house to the house of Mst. Rasheeda was owned by Muhammad Asgher. The partitioned wall existing between these two houses was having Hight approximately 2.5/3 feet/ **The house of Ilam Din was not adjacent to above mentioned houses rather it was towards the other side.**”(emphasis supplied)

This fact that the houses of both the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) were not found to be present at the place of occurrence is conspicuous and has lead this Court to the irresistible conclusion that both the prosecution witnesses

namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) failed to prove that they were the residents of the houses next to the place of occurrence, which affinity of their residences to the place of occurrence, according to the said witnesses, had enabled them to witness the occurrence. There did not exist any reason for Saeed Akhtar draftsman (CW-7) and Abdur Rauf (CW-5), the Investigating Officer of the case, not to have shown the residences of the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) in the site plans {Exh.CW7/1 and Exh.CW7/2 as prepared by Saeed Akhtar draftsman (CW-7) and Exh.CW5/1 as prepared by Abdur Rauf (CW-5)}. Had the residences of the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) been near the place of occurrence as stated by them, then the said residences must have been shown in the site plans {Exh.CW7/1 and Exh.CW7/2 as prepared by Saeed Akhtar draftsman (CW-7) and Exh.CW5/1 as prepared by Abdur Rauf (CW-5)}. This factor conclusively proves that both the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) not only miserably failed to prove the presence of their residences near the place of occurrence but also their arrival at the place of occurrence, at the time of occurrence due to them being the near residents.

15. This Court has also noted with grave concern that both the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) remained at variance with regard to the actual place of the occurrence and the place of presence of the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif at the time of occurrence. Faqeer Muhammad (PW-3) during cross-examination, admitted that the occurrence

had not taken place inside the house of the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif and went on to admit that the appellant was present inside her own house when the occurrence was taking place whereas the occurrence had taken place inside the house of one Muhammad Asghar. Fazeer Muhammad (PW-3) during cross-examination stated as under:-

“Ilim Din went to deliver wire to the house of his brother and the occurrence took place in the house of brother of Ilim Din. It is correct that the occurrence did not take place in the house of Mst. Rashida. Volunteered stated that there was a wall with height of two feet between the houses of brother of Ilim Din namely Muhammad Asghar and house of Mst. Rashida. **At the time of occurrence Mst. Rashida was in her house She was not in the house of Muhammad Asghar .”** (emphasis supplied)

The above referred portion of the cross-examination of Fazeer Muhammad (PW-3) is in itself sufficient to prove that the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif was not involved in the occurrence in any manner. Furthermore, in the scaled site plans of the place of occurrence (Exh.CW7/1 and Exh.CW7/2) as prepared by Saeed Akhtar draftsman (CW-7) and in the rough site plan of the place of occurrence (Exh.CW5/1) as prepared by Abdur Rauf (CW-5), the Investigating Officer of the case, the place of occurrence has been mentioned as the house of one Muhammad Asghar and not the house of the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif. Therefore, this Court is convinced that the prosecution witnesses remained unable even to establish the place of occurrence with any exactitude and the fact that the appellant

namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif was present at the place of occurrence, at the time of occurrence.

16. This Court has also noted that the place of occurrence, from where the blood stained earth was taken into possession, was the house of one Muhammad Asghar however, the said Muhammad Asghar never joined the investigation nor appeared before the learned trial court. Furthermore, according to the prosecution witnesses, at the time of the occurrence, other residents were also present inside the said house however, admittedly none of the residents of the place of occurrence who were admittedly present at time of occurrence, joined the investigation of the case or appeared before the learned trial court. Faqeer Muhammad (PW-3) during cross-examination stated as under:-

“On hearing hue and Cry, we attracted to the house of Muhammad Asghar
At that time, our **Aunt, her daughter and her daughter in law were also present in the house.**”

Neither during the course of investigation nor before the learned trial court, the statements of the said paternal aunt of Faqeer Muhammad (PW-3), her daughter and her daughter in law, who were admittedly the residents of the place of occurrence and were also present there at the time of occurrence, were recorded. This failure of both the Investigating Officers of the case namely Abdur Rauf ASI (CW-5) and Muhammad Akmal SI (CW-6), to include in investigation the inhabitants of the house where the occurrence had taken place and the failure of the complainant to produce the said inhabitants of the place of occurrence before the learned trial court, reflects poorly upon the veracity of the prosecution case. The instant case was instituted upon a private complaint and the complainant of the case namely Faqeer Muhammad (PW-

3) could have easily produced his own relatives who were the residents of the place of occurrence before the learned trial court however, he failed to do so. Article 129 of the Qanun-e-Shahadat, 1984 provides that if any evidence available with the parties is not produced, then it shall be presumed that had that evidence been produced the same would have been gone against the party producing the same. Illustration (g) of the said Article 129 of the Qanun-e-Shahadat Order, 1984 reads as under:-

“(g) that evidence which could be and is not produced would, if produced, be unfavourable to the person who withholds it.”

The failure of the prosecution to produce the residents of the place of occurrence and the most natural witnesses ,before the learned trial court , has convinced this Court that had they been produced before the learned trial court they would not have supported the prosecution case. Reliance in this matter is placed on the case of SHAMSHAD versus THE STATE (1998 SCMR 854 also cited as 1999 SCMR 2844) wherein the august Supreme Court of Pakistan held as under:-

“10. The prosecution has also failed to offer a plausible explanation as to why the children of the appellant, who were, admittedly, present in the house at the time of the incident, were not produced as witnesses in the case. In fact, the children of the appellant were the most natural witnesses of the occurrence, However, the Investigating Officer thought it fit not to examine them as witnesses. When confronted with this situation at the time of his cross-examination he explained that two daughters and the son of the appellant were less than? years of age. However, in the same breath it was admitted by him that Ruhi Bano was about 8 or 9 years of age. The other children were a few years younger. However, at least the older children under normal circumstances could have given evidence in the Court. The explanation given by the Investigating Officer, therefore, was not tenable.

.....

13. Learned State Counsel has however, argued that in case the prosecution had failed to examine any of the appellant's children as a witness, they should have been examined as defence witnesses. It has been

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further argued that if there are two versions, one given by the prosecution and the other by the defence, then if the latter is not believed, the prosecution version must be believed as true. In our view, both the contentions are untenable. Burden to prove its case beyond a reasonable doubt squarely rests on the prosecution. Such burden cannot be discharged by weaknesses found in the case of the defence. The mere fact that the defence version is not believed by the Court cannot lend credence to the prosecution case if, otherwise, the prosecution has failed to discharge its burden. For the reason enumerated above, we have no hesitation in coming to the conclusion that the prosecution has failed to establish its case against the appellant.”(emphasis supplied)

Reliance is also placed on the case of Lal Khan versus THE STATE (1996 SCMR1846) wherein the august Supreme Court of Pakistan held as under:-

“The prosecution is certainly not required to produce a number of witnesses as the quality and not the quantity of the evidence is the rule but non-production of most natural and material witnesses of occurrence, would strongly lead to an inference of prosecutorial misconduct which would not only be considered a source of undue advantage for possession but also an act of suppression of material facts causing prejudice to the accused. The act of withholding of most natural and a material witness of the occurrence would create an impression that the witness if would have been brought into witness-box, he might not have supported the prosecution and in such eventuality the prosecution must not be in a position to avoid the consequence.”

Reliance is also placed on the case of USMAN alias KALOO versus THE STATE (2017 SCMR 622) wherein the august Supreme Court of Pakistan held as under:-

“A peculiar feature of this case is that the inmates of the house of occurrence, i.e. the mother, wife and children of Noor Muhammad deceased had never been associated with the investigation of this case and no statement of the said natural witnesses had been recorded by the investigating officer nor were they produced before the trial court”.

Reliance is also placed on the cases of Muhammad Irshad Vs. Allah Ditta and others (2017 SCMR 142) and G. M. NIAZ Vs. The State” (2018 SCMR 506).

In this manner, the prosecution case suffers from inherent defects which are irreconcilable as it is.

17. This Court has been vexed by the fact that the ocular account of the occurrence as furnished by the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) is flawed beyond reparation and has disfigured the appearance of the whole prosecution case beyond restoration and recognition. The statements of both the eye witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) are in direct contrast and inconsistent with the observations and the opinion of Dr. Mubashir Raza (PW-1), who not only examined the deceased namely Ilam Din son of Muhammad Shafi when he was injured but also conducted the post mortem examination of the dead body of the deceased. According to the statements of both the witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4), they had seen the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif give three blows with the *Danda* to Ilam Din (deceased). Faqeer Muhammad (PW-3) in his examination in-chief stated as under:-

“Mst. Rashida Bibi, pick up a wooden DANDA lying nearby and **hit upon head of my father. She repeated it again upon his head. She made third DANDA blow** which hit upon left side of ribs of my father.

.....

Mst. Rashida Bibi inflicted above mentioned **three DANDA blows** in our view.” (*emphasis supplied*) .

Similarly, Muhammad Ramzan son of Ilam Din (PW-4) in his examination in-chief stated as under:-

“There we saw Mst. Rashida Bibi. picked up DANDA and **hit upon the head of my father. She made second blow upon his head and third blow** which hit upon left side of his ribs.” *(emphasis supplied)* .

Both the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) remained adamant that the appellant had given three Danda blows to the deceased. Contrary to the said repeated claim of both the witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4), Dr. Mubashir Raza (PW-1), who not only examined the deceased namely Ilam Din son of Muhammad Shafi when he was injured but also conducted the post mortem examination of the dead body of the deceased, stated that there was only one injury present on the dead body of the deceased which was on his head. Dr. Mubashir Raza (PW-1) on examining Ilam Din son of Muhammad Shafi (then injured later deceased) on 17.07.2020 observed as under:-

““Injury No. 1 (i) **A stitched wound at the area of frontoparietal and extended to left mastoid region.** Mark measuring 28 cm x 0.5 cm width and depth cannot be given because wound was already stitched.

(ii). At the time of examination of victim there was no ENT bleeding seen.

Injury No. (2) Slide (sic) swelling of the left sub costal of chest mark measuring 5 cm x 2 cm. X ray chest A-P and lateral view. **This injury was declared as NAD**”. *(emphasis supplied)*

On 06.08.2020, Dr. Mubashir Raza (PW-1) conducted the post mortem examination of the dead body of the deceased namely Ilam Din son of Muhammad Shafi after his death and noted the same one injury as mentioned by him at the time of the medical examination of Ilam Din son of Muhammad Shafi (deceased) , and further opined as under:-

“Final Opinion

After going through external and internal examination of the body. it is concluded that injury No. I was ante mortem in nature and caused by blunt object and also origin (sic) **wound extended may be during operation in neuro surgery ward BVH, Bahawalpur.**”(emphasis supplied)

The said opinion of Dr. Mubashir Raza (PW-1) that he had observed only one injury on the person of Ilam Din son of Muhammad Shafi (deceased) when he had examined him in an injured condition and that at the time of post-mortem examination of the dead body of the deceased the same one injury was observed, was never challenged by the complainant of the case either during the investigation of the case or during the course of trial. The complainant of the case very well knew that the observations and opinion of Dr. Mubashir Raza (PW-1) were in themselves sufficient to bring down the whole edifice of the prosecution case as narrated by the witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4), however, even being in knowledge of this fact, no effort was made by the prosecution witnesses to challenge the observations and opinion Dr. Mubashir Raza (PW-1) or if the same could not be challenged, then to explain the same. This Court has noted that during the course of trial the prosecution witnesses failed to explain as to why was there such a huge, gaping and all consuming, inexplicable and baffling error in the statements of the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) who proceeded to attribute inflicting of three separate *Danda* blows by the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif to the deceased, without any support from the medical evidence. Despite

repeated queries, both the learned Deputy District Public Prosecutor and the learned counsel for the complainant/respondent No.2 have failed to explain the said discrepancy in the prosecution evidence. In this manner, irreconcilable and distressing contradiction has cropped up in the ocular account of the occurrence as narrated by the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) and the medical evidence as furnished by Dr. Mubashir Raza (PW-1). This contradiction in the ocular account of the occurrence, as narrated by Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) and the medical evidence as furnished by Dr. Mubashir Raza (PW-1), clearly establishes that the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) miserably failed to prove their presence at the place of occurrence, at the time of occurrence. Had the witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) seen the occurrence then there did not exist any possibility that they would have fallen into error, stating wrongly that the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif had given three *Danda* blows to the deceased. In this regard guidance is sought from the principle enunciated by the august Supreme Court of Pakistan in the case of “Amin Ali and another Vs. The State” (2011 SCMR 323) where the august Supreme Court of Pakistan was pleased to reject the evidence of injured witnesses and held as under:-

“11. All the three witnesses deposed that the deceased had received three injuries, but the Medical Officer found six injuries on the person of the deceased. One of them had blackening. None of the witnesses deposed that any of the appellants had caused the injuries from a close range but on the contrary in the site plan the place of firing has been

shown 8 feet away from the deceased. Thus from such a distance injury with blackening cannot be caused as it can be caused from a distance of less than 3 feet as per Modi's Medical Jurisprudence. The Medical Officer did not show as to which of the injury was entry or exit wound on the person of the deceased. The medical officer stated that metallic projectile was recovered from wound No.1/B which was an exit wound. If it was an exit wound then the metallic projectile would have been out of the body. The presence of metallic projectile in the body clearly establishes the fact that it is not an exit wound but an entry wound. The medical officer has not shown that any of the injuries had inverted or averted margins so as to ascertain as to which of the injuries is entry or exit wound. Thus on this count there is a conflict between the medical and oral evidence. **Furthermore, according to Medical Officer, the P.W.15 had four injuries out of them two were entry and two were exit wounds but the P.Ws. 13 and 14 deposed that the injured had received three injuries. Thus the P.Ws. have shown one exit wound as entry wound.** With regard to the injured Tanveer Hussain, the Medical Officer showed two injuries one entry wound on the chest and one exit wound on the back but all the three eye-witnesses deposed that P.W.14 had received two injuries on his chest. As regards injuries on the person of Mst. Maqbool Bibi. The Medical Officer found one entry wound on her back with blackening, whereas P.Ws. 13, 14 and 15 deposed that the fire shot was fired from the roof of the shop. Entry wound with blackening marks cannot be caused from such a long distance. From the above position it is manifest that the ocular testimony is in conflict with the medical evidence. Thus, the deceased and injured did not receive the injuries in the manner, as alleged by the prosecution.

.....

13. From the above evidence of the P. Ws., they do not appear to be truthful witnesses; therefore, no implicit reliance can be placed on their evidence.”

Reliance is also placed on the case of “Mansab Ali Vs. The State” (**2019 S C M R 1306**) where the august Supreme Court of Pakistan was pleased to hold as under:--

*“2. Prosecution case is structured upon ocular account. According to Muhammad Bilal, PW-6, the appellant made two successive shots on the deceased, first landing on the right arm, while second hitting the back; Muhammad Mansha, PW-7 took the same position. Both of them are in a diametrical conflict with the position taken in the crime report wherein the appellant is assigned solitary shot landing on the deceased's chest. Confusion is further compounded by the statement of Dr. Javid Ahmed, PW-3, who noted an entry wound on the posterior aspect of left shoulder; the bullet exited from the chest valve; the second fire shot was on the right upper arm with its corresponding exit. **This is not in line with the prosecution case that the appellant targeted the chest as the wound noted by the Medical Officer is an exit wound.** Both the witnesses have been duly confronted with their deviation from previous statements. From amongst the acquitted accused, Muhammad Yousaf was assigned a club blow to Muhammad Munawar, PW-8, noted by the Medical Officer as a painful swelling; his acquittal went without challenge. The learned Law Officer has not been able either to justify witnesses' departure from previous statements or to explain conflict between ocular account and medical evidence. Though with roles somewhat trivial nonetheless, en bloc acquittal of co-accused on the same evidence is yet another predicament facing the State. The prosecution case is fraught with doubts, thus it would be unsafe to maintain the conviction. Resultantly, the appeal is allowed, the impugned judgment is set aside. The appellant shall be set at liberty forthwith, if not required in any other case.” (emphasis supplied) .*

18. Another aspect of the case raising doubt over the presence of the prosecution witness namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) at the place of occurrence, at the time of occurrence is the fact that they never reported the matter to the police for as many as more than **thirty three hours**. According to the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) the occurrence had taken place on **15.07.2020 at 12.00 pm** (noon) however, the oral statement (Exh.PI) of Faqeer Muhammad (PW-3) was recorded by Abdur Rauf ASI (CW-5) on **16.07.2020 at 09.00 pm**.

Faqeer Muhammad (PW-3) tried to explain his failure to report the matter to the police by stating that after the occurrence he had taken the deceased to the THQ Hospital Ahmadpur East and from there the deceased was referred to BV Hospital Bahawalpur and after their arrival at the BV Hospital Bahawalpur his oral statement (Exh.PI) was recorded. In this regard, it is observed that the prosecution did not bring on record any documentary evidence that the deceased was ever taken to the THQ Hospital Ahmadpur East and from there the deceased was referred to be examined at BV Hospital Bahawalpur. Additionally, Dr. Ameenullah Khan (PW-2) in his statement before the learned trial court stated that on 15.07.2020, Ilam Din (deceased) was brought to the Neuro Surgery Ward BV, Bahawalpur in an injured condition and he was examined by Dr. Ameenullah Khan (PW-2) however, though Ilam Din (deceased) had been admitted to Neuro Surgery Ward BV, Bahawalpur on 15.07.2020 still Faqeer Muhammad (PW-3) did not report the matter to the police. No reason, much less plausible, has been given by the prosecution at any stage for such deferral in reporting the matter to the police. In this case, the ocular account furnished, is suffering from legal and factual infirmities and does not appeal to a prudent mind, much less legal one, because, the witnesses never reported the matter to the police for as many as **thirty three hours**. This inordinate delay in reporting the matter conclusively proves that the oral statement (Exh.PI) of Faqeer Muhammad (PW-3) and the formal F.I.R (Exh.CW1/1) were prepared after probe, consultation, planning, investigation and discussion and as the prosecution witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) were not present at the place of occurrence, at the time of occurrence, the delay was used for inventing a false narrative of the occurrence. As many as thirty three

hours were taken to invent a dishonest and fabricated narrative of the oral statement (Exh.PI) of Faqeer Muhammad (PW-3). The scrutiny of the statements of the prosecution witnesses reveals that the oral statement (Exh.PI) of Faqeer Muhammad (PW-3) was neither prompt nor spontaneous nor natural, rather was a contrived, manufactured and a compromised document. Sufficient doubts have arisen and inference against the prosecution has to be drawn in this regard and the delay in reporting the matter to the police and the failure of the prosecution witnesses to proceed to the Police Station evidences their absence at the time of occurrence, at the place of occurrence. Reliance is placed on the case of “Ghulam Abbas and another v. The State and another” (2021 SCMR 23) wherein the august Supreme Court of Pakistan observed as under:-

“As per contents of FIR, the occurrence in this case took place on 19.06.2008 at 01.40 a.m. and the matter was reported to the Police on the same morning at 07.00 a.m. and as such there is a delay of more than five hours in reporting the crime to the Police whereas Police Station was situated at a distance of just six kilometers from the place of occurrence. No explanation whatsoever was furnished by the complainant for this delay in reporting the crime to the Police. Hameed Ullah Khan SI (PW.15) who investigated the case stated during his cross-examination that he reached at the place of occurrence at about 05.00 a.m. and he had completed the police proceedings by 06.30 p.m. In the circumstances, chances of deliberations and consultations before reporting the matter to the Police cannot be ruled out.”

Reliance is also placed on the case of MUHAMMAD ASHRAF JAVEED and another vs. MUHAMMAD UMAR and others (2017 SCMR 199) wherein the august Supreme Court of Pakistan was pleased to hold as under:

“The hospital is closely situated to the Police Station but neither the complainant nor PWs took a little pain to report the matter, nor the staff of the hospital including the treating doctor took initiative.”

Guidance is also sought from the principle enunciated by the august Supreme Court of Pakistan in the case of Zafar vs. The State and others (2018 SCMR 326) where the august Supreme Court of Pakistan was pleased to hold as under:-

“It has been observed by us that the occurrence in this case as per prosecution took place on 03.09.1999 at 3.00 a.m. (later half of night) and the matter was reported to the police on the same day at 8.30 a.m. i.e. after five hours and thirty minutes of the occurrence. The distance between the place of occurrence and the police station is 09 miles. The postmortem on the dead body of deceased was conducted on the same day at 2.00 p.m. i.e. after 11 hours of the occurrence. No explanation whatsoever has been given by the complainant Shahadat Ali (PW5) and Umer Daraz (PW6) in the FIR or while appearing before the learned trial Court qua the delay in lodging the FIR or for that matter the belated postmortem of the deceased.”

Guidance is sought from the principles enunciated by the august Supreme Court of Pakistan in the cases of “G. M. NIAZ Vs. The State” (2018 SCMR 506), Abdul Jabbar and another Vs. The State (2019 S C M R 129) and Muhammad Shafi alias Kuddoo Vs. The State and others (2019 S C M R 1045).

19. Moreover, this Court has noted with great anxiety that initially the circumstances in which the deceased had received the injury on his head were reported as being a fall whereas subsequently the false narrative of the oral statement (Exh.PI) of Faqeer Muhammad (PW-3) was formulated. In this

respect, the statement of Dr. Ameenullah Khan (PW-2) is of much importance. Dr. Ameenullah Khan (PW-2) in his statement before the learned trial court stated that on 15.07.2020, Ilam Din (deceased) was brought to the Neuro Surgery Ward BV, Bahawalpur in an injured condition and he was examined by Dr. Ameenullah Khan (PW-2). A scrutiny of the statement of Dr. Ameenullah Khan (PW-2) establishes the fact that the matter was not being reported to the police for the reason that initially the circumstances in which the deceased had received the injury were mentioned as a fall and not that he had been given *Danda* blows by the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif. Dr. Ameenullah Khan (PW-2) during cross-examination stated as under:-

“It is correct that expiry notes concerning to Ilim Din, are available in my record. It is correct that attested copy of expiry notes Exh.DA to Exh.DA/1-25, consisting upon 25 pages tally with record, available with me. As per my record, in column of brief history of expiry notes, it is mentioned that **patient expired due to fallen from wall**. Similarly, same history is mentioned in Emergency proforma from Accidental and Emergency Department in the column of detail history proforma, presenting illness, **there is mentioned fallen from wall**. In its second column the concerned doctor mentioned that "**my patient was in a usual state of health. today, when he fell down wall**. It was associated with loss of consciousness and vomiting. In daily progress report dated 16.07.2020. at 09.20 a.m. there is mentioned "**history of fall from wall**". (emphasis supplied)

20. Regarding the recovery of the *Danda (P-1)* from the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif, the same cannot be relied upon as the Investigating Officer of the case, did not join any witness of the locality during the recovery of the said *Danda (P-1)* from the

appellant which was in clear violation of section 103 Code of Criminal Procedure, 1898 and therefore cannot be used as incriminating evidence against the appellant, being evidence which was obtained through illegal means and hence hit by the exclusionary rule of evidence. The august Supreme Court of Pakistan in the case of Muhammad Ismail and others Vs. The State (**2017 SCMR 898**) at page 901 has held as under:-

“For the above mentioned recovery of weapons the prosecution had failed to associate any independent witness of the locality and, thus, the mandatory provisions of section 103, Cr.P.C. had flagrantly been violated in that regard.”

Another aspect regarding the recovery of the *Danda (P-1)* from the appellant is that the occurrence took place on **15.07.2020**, whereas the *Danda (P-1)* was sent to the office of Punjab Forensic Science Agency, Lahore, on **08.09.2020** and was analyzed on **30.09.2020**. During such a long period the blood available on the *Danda (P-1)*, if any, would have disintegrated. It is not possible to believe that the blood available on the *Danda (P-1)* had not disintegrated by the time the same was analyzed by the Punjab Forensic Science Agency, Lahore and it was, therefore scientifically impossible to detect the origin of the blood. The august Supreme Court of Pakistan in the case of “Faisal Mehmood Vs. The State” (**2016 SCMR 2138**) has held as under:-

“The report of the Chemical Examiner showing the recovered hatchet to be stained with blood is dated 20.12.2002 whereas the report of the Serologist showing the origin of the blood available on the recovered hatchet to be human blood is dated 25.05.2004. It was scientifically impossible to detect the origin of the blood after about two years of the occurrence because human blood disintegrates in a period of about three weeks.”

Therefore, the recovery of the *Danda (P-1)* from the appellant does not further the case of prosecution in any manner. In view of the above mentioned facts,

the alleged recovery of the *Danda (P-1)* is not proved and the same cannot be used as a circumstance against the appellant. Even otherwise as this Court has disbelieved the ocular account in this case, hence the evidence of recovery of the *Danda (P-1)* would have no consequence. It is an admitted rule of appreciation of evidence that recovery is only a corroborative piece of evidence and if the ocular account is found to be unreliable then the recovery has no evidentiary value.

21. The learned Deputy District Public Prosecutor has also relied upon the evidence of motive and submitted that it corroborated the ocular account. The motive of the occurrence as stated by Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) was that the deceased used to engage into quarrel with the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif prior to the occurrence and therefore, she murdered him on the day of occurrence. Both the witnesses namely Faqeer Muhammad (PW-3) and Muhammad Ramzan son of Ilam Din (PW-4) admittedly did not give any evidence as to the day, the time and frequency of the alleged earlier quarrels between the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif and the deceased namely Ilam Din son of Muhammad Shafi. Furthermore, no documentary evidence was brought on record to prove that any earlier quarrel had taken place between the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif and the deceased which had been reported to the police. No earlier episode of any dispute between the deceased and the appellant had been ever reported to the police. The prosecution witnesses failed to provide evidence enabling this Court to determine the truthfulness of the motive alleged, and the fact that the

said motive was so compelling that it could have led the appellant to have committed the *Qatl-i-Amd* of the deceased. There is a haunting silence with regard to the minutiae of motive alleged. No independent witness was produced by the prosecution to prove the motive as alleged. Even otherwise a tainted piece of evidence cannot corroborate another tainted piece of evidence. The august Supreme Court of Pakistan has held in the case of *Muhammad Javed v. The State* (2016 SCMR 2021) as under:

“The said related and chance witnesses had failed to receive any independent corroboration inasmuch as no independent proof of the motive set up by the prosecution had been brought on the record of the case.”

22. Considering all the above circumstances, this Court entertains serious doubt in its mind regarding the involvement of the appellant namely Mst. Rashida Bibi alias Khanam wife of Muhammad Asif, in the present case. It is a settled principle of law that for giving the benefit of the doubt it is not necessary that there should be so many circumstances rather if only a single circumstance creating reasonable doubt in the mind of a prudent person is available then such benefit is to be extended to an accused not as a matter of concession but as of right. The august Supreme Court of Pakistan in the case of *“Muhammad Mansha Vs. The State”* (2018 SCMR 772) has enunciated the following principle:

“Needless to mention that while giving the benefit of doubt to an accused it is not necessary that there should be many circumstances creating doubt. If there is a circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of such doubt, not as a matter of grace and concession, but as a matter of right. It is based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted”. Reliance in this behalf can be made upon the cases of Tariq Pervez v. The State (1995 SCMR 1345), Ghulam Qadir and 2 others v. The State (2008 SCMR 1221), Muhammad Akram v. The State (2009 SCMR 230) and Muhammad Zaman v. The State (2014 SCMR 749).”

Reliance is also placed on the judgment of the august Supreme Court of Pakistan Muhammad Akram Vs. the State (2009 SCMR 230) in which it has been observed in paragraph No.13 of page 236 as infra:

“It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

23. For what has been discussed above, Criminal Appeal No.241 of 2021 lodged by Mst. Rashida Bibi alias Khanam wife of Muhammad Asif (appellant) is **allowed** and the conviction and sentence of the appellant awarded by the learned trial court through the impugned judgment dated 25.05.2021 are hereby set-aside. Mst. Rashida Bibi alias Khanam wife of Muhammad Asif (appellant) is ordered to be acquitted by extending her the benefit of doubt. Mst. Rashida Bibi alias Khanam wife of Muhammad Asif (appellant) is in custody and is directed to be released forthwith if not required in any other case.

24. The complainant of the case filed Petition for Special Leave to Appeal No.29 of 2021 seeking permission to file an appeal against the acquittal of Muhammad Ramzan son of Shah Din, Muhammad Rashid son of Muhammad Ramzan and Muhammad Nasir son of Muhammad Ramzan (all since acquitted). This Court has observed that the learned trial court has rightly acquitted the said accused. This Court has scrutinized the statements of the prosecution witnesses and has come to the conclusion that the prosecution witnesses could not prove the facts in issue. It is important to note that

according to the established principle of the criminal administration of justice once an acquittal is recorded in favour of accused facing criminal charge he enjoys double presumption of innocence, therefore, the courts competent to interfere in the acquittal order should be slow in converting the same into conviction, unless and until the said order is patently illegal, shocking, based on misreading and non-reading of the record or perverse. The said principle has been enunciated by the august Supreme Court of Pakistan in the judgment reported as Muhammad Inayat Versus The State (1998 SCMR 1854) wherein it has been held as under:

“The Court would not interfere with acquittal merely because on re-appraisal of the evidence it comes to the conclusion different from that of the Court acquitting the accused provided both the conclusions are reasonably possible. If, however, the conclusion reached by that Court was such that no reasonable person would conceivably reach the same, and was impossible then this Court would interfere in exceptional cases on overwhelming proof resulting in conclusion and irresistible conclusion; and that too with a view only to avoid grave miscarriage of justice and for no other purpose. The important test visualised in these cases, in this behalf was that the finding sought to be interfered with, after scrutiny under the foregoing searching light, should be found wholly as artificial, shocking and ridiculous.”

The august Supreme Court of Pakistan in the case of “Mst. Sughran Begum and another Vs. Qaiser Pervaiz and others” (2015 SCMR 1142) has held as under:

“On acquittal, an accused person earns twofold innocence particularly, in the case when there are concurrent findings to that effect by the trial Court and the Court of First Appeal (High Court), is the bedrock principle of justice. In a case of acquittal, the standard and principle of appreciation of evidence is entirely

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different from that in a case of conviction. Unless the concurrent findings of the two Courts below are found perverse, fanciful, arbitrary and are based on misreading and non-reading of material evidence causing miscarriage of justice, the Supreme Court would not lightly disturb the same because on reappraisal, another view might be possible therefore, sanctity is attached under the law to such concurrent findings in ordinary course.”

Pursuant to the discussion made and conclusions arrived at above, the Petition for Special Leave to Appeal No.29 of 2021 as filed by the complainant, seeking permission to file an appeal against the acquittal of Muhammad Ramzan son of Shah Din, Muhammad Rashid son of Muhammad Ramzan and Muhammad Nasir son of Muhammad Ramzan (all since acquitted), is hereby **dismissed**.

25. Pursuant to the discussion made and conclusions arrived at above, the Criminal Revision No. 126 of 2021 seeking the enhancement of sentences awarded to Mst. Rashida Bibi alias Khanam wife of Muhammad Asif (convict), is also **dismissed**.

(SADIQ MAHMUD KHURRAM)
JUDGE

Mosab

Approved for Reporting

Judge